

02:00 PM

24-CIV-00660 ANDREW G WATTERS VS. SIDDHARTH BREJA, ET AL.

LINE 3

ANDREW G. WATTERS
SIDDHARTH BREJA

JERAMY STEPHEN STONE
PRO SE

DEFENDANT SIDDHARTH BREJA'S MOTION FOR ORDER AWARDING APPELLATE COSTS

TENTATIVE RULING:

The Court notes that the Motions for Order Awarding Appellate Costs and Motion to Enforce Appellate Mandate (the "Motions") brought by Defendant/Cross-Complainant Siddharth Breja ("Cross-Complainant"), provide that the above-entitled matter was set in Department 19. However, effective May 11, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable David A. Silberman, Department 11, located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) The motions should have been renoticed. But the error is understandable and waived.

The Court further notes that Defendant's proofs of service includes his declaration that he served the moving papers himself, which violates Code of Civil Procedure section 1013a, subdivision (1). Plaintiff does not object and has responded, so the Court finds no prejudice and that the defect has been waived. But Defendant is on notice that he cannot validly continue to serve papers himself.

Both of Defendant's Motions are GRANTED and this case is STAYED pursuant to Code of Civil Procedure section 1281.4 during the pendency of the arbitration (commencing eleven days from entry of this order). Plaintiff Andrew Watters IS ORDERED to either dismiss his claims in this action or commence formal arbitration process within ten (10) days of entry of this order.

Background

This action arises over a fee dispute. Plaintiff/Cross-Defendant Andrew G. Watters ("Cross-Defendant") is an attorney who in 2023 had represented Cross-Complainant in a dissolution action pursuant to a written contract. Cross-Complainant retained Cross-Defendant on May 1, 2023, shortly before the trial scheduled for June 6, 2023. The parties agreed that Cross-Defendant's attorney's fees would not exceed \$20,000 through the end of trial, specifying further that Cross-Complainant would pay to Cross-Defendant a \$10,000 initial retainer, and a \$10,000 trial deposit. Cross-Complainant paid \$10,000 with his American Express card, and wired \$10,000 to Cross-Defendant's trust account with Chase Bank.

Cross-Defendant alleges that Cross-Complainant exercised an inappropriate level of control over his work, including drafting his own legal briefs and sending around 150 emails and at least 100 text

messages during less than 30 days' representation, which ended on May 26, 2023. Cross-Defendant sent Cross-Complainant a pre-bill with a preliminary accounting. Cross-Complainant then asked for his money back despite having agreed that the first \$10,000 was non-refundable, and having been given the pre-bill showing that the total bill exceeded the initial deposit and retainer.

The Complaint alleges that Cross-Complainant then engaged in a scheme to get his money back by filing a fraudulent complaint with Chase Bank, seeking to have the \$10,000 wired back from Cross-Defendant's client trust account. Cross-Defendant alleges that Cross-Complainant committed some type of fraud because the latter's representations caused Chase Bank to close Cross-Defendant's account. Cross-Complainant also initiated a refund request for the \$10,000 with American Express, and American Express then took \$10,000 from Cross-Defendant's Chase Bank account without prior notice.

On June 27, 2023, Cross-Defendant filed a complaint in United States District Court, Northern District of California, based on similar allegations. On January 18, 2024, the federal action was dismissed without prejudice based on lack of subject matter jurisdiction. Thus, on February 6, 2024, Cross-Defendant filed this action against Cross-Complainant and nominal defendants Chase Bank and American Express, alleging eight causes of action. The Court denied Cross-Complainant's Motion to Compel Arbitration, which order Cross-Complainant appealed on September 19, 2024. The Court of Appeal reversed on the ground of its finding that Cross-Complainant's conduct did not constitute waiver of his right to compel arbitration under the parties' legal representation agreement, and ordered that Cross-Complainant was to recover his costs. (Remittitur, issued on November 26, 2026, and filed in this action on December 5, 2025 (the "Remittitur"), p.1.)

Through the Motions, Cross-Complainant asks the Court for an Order awarding him appellate costs in the amount of \$1,089.12 (Cal. Rules of Court, rule 8.278) pursuant to the Remittitur, and directing the Clerk to enter judgment accordingly; he also asks the Court to enforce the remittitur mandate and stay this case.

Costs

In its Remittitur, the Court of Appeal awarded appellate costs to Cross-Complainant as described *supra*. Accordingly, on December 2, 2025, Cross-Complainant timely filed and served a verified Memorandum of Costs on Appeal, claiming appellate costs of \$1,089.12. (Cal. Rules of Court, rule 8.278(c)(1); Breja Decl., ¶ 4, & Exh. 2.) The costs are reasonable, and fall within the scope of California Rules of Court, rule 8.278(d)(1).

Cross-Defendant had 15 days after service of the Memorandum of Costs to file and serve a motion to strike or tax the appellate costs claimed, plus any applicable service extension. (Cal. Rules of Court, rules 8.278(c)(2) & 3.1700(b)(1).) Though this period expired on or about December 19, 2025, Cross-Defendant made no payment nor indicated any intent to pay through the date of Cross-Complainant's Declaration, despite Cross-Complainant's efforts to meet and confer on this point. (Breja Decl., ¶¶ 5-9, & Exhs. 3 & 4.)

Cross-Defendant's arguments that the Motion should be denied are unavailing.

Cross-Defendant asserts that since Cross-Complainant requested arbitration, this action has been stayed (Bus. & Prof. Code, § 6201, subd. (c)). However, although no arbitration stay was in effect during the time in which Cross-Defendant could have brought a motion to strike or tax costs, Cross-Defendant failed to do so. Cross-Defendant asserts the incomplete sentence that "Upon the filing of an appropriate request for arbitration, with the stay to remain in force until the arbitration terminates" (Opp., 5:5-6), while repeatedly also asserting that Cross-Complainant's request for arbitration is futile or otherwise inappropriate (*see, e.g., id.*, 2:2-4, 6:3-6).

Cross-Defendant also appears to refer to the stay effected by the Court of Appeal on July 24, 2025 (*see, e.g., id.*, 5:15-16)—while declining to tell this Court that the very same order expressly provides that, "Unless otherwise ordered, the stay will dissolve upon issuance of the remittitur in the appeal. (Cal. Rules of Court, rule 8.272.)" (Court of Appeal, First Appellate District, Case No. A171728, docket for July 24, 2025, Order Granting Petition for Writ of Supersedeas.) Cross-Defendant further asserts that Cross-Complainant was required to file a noticed motion to lift the stay, citing California Rules of Court, rule 3.650—and *Levinson Arshonsky & Kurtz LLP v. Kim* (2019) 35 Cal.App.5th 896 (*Levinson*), a case that specifies that this is required *pursuant to the Mandatory Fee Arbitration Act (MFAA)*. (*Levinson, supra*, 35 Cal.App.5th 896, 906.) The rule requires a notice, not a noticed motion. That rule also provides that Cross-Complainant had to provide a notice of stay (Cal. Rules of Court, rule 3.650(a) & (b)(1)), which the Court's records show him to have done on July 24, 2025 (the "Notice of Stay"), and which notice shows the Order of the Court of Appeal providing that, "Unless otherwise ordered, the stay will dissolve upon issuance of the remittitur in the appeal. (Cal. Rules of Court, rule 8.272.)" (Notice of Stay, p.4.) Moreover, Cross-Defendant does not mention that if Cross-Complainant failed to file a notice that the stay was lifted, then Cross-Defendant was required to do so:

When a stay is vacated, is no longer in effect, or is modified, the party who filed the notice of the stay must immediately serve and file a notice of termination or modification of stay. *If that party fails to do so, any other party in the action who has knowledge of the termination or modification of the stay must serve and file a notice of termination or modification of stay.* Once one party in the action has served and filed a notice of termination or modification of stay, other parties in the action are not required to do so.

(*Id.*, rule 3.650(d) (emphasis added).) Here, the Court of Appeal already directed that the stay would dissolve automatically upon its issuance of the Remittitur. (Court of Appeal, First Appellate District, Case No. A171728, docket for July 24, 2025, Order Granting Petition for Writ of Supersedeas.)

Cross-Defendant's invocation of section 473 is unavailing as well. In pertinent part, the statute provides that:

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect.
Application for this relief shall be accompanied by a copy of the answer or other pleading

proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

Code Civ. Proc., § 473, subd. (b).) Cross-Defendant's not having filed a motion to strike or tax costs by about December 19, 2025, is not a "judgment, dismissal, order, or other proceeding taken against the party" within the scope of the statute. Even if it were, however, a motion filed pursuant to the statute even as early as the date on which the Opposition was filed (August 18, 2026) would have been untimely, as the statute would not reach beyond June 19, 2026.

Moreover, as noted above, the Remittitur awarding appellate costs to Cross-Complainant issued on November 26, 2025, and was filed in this action on December 5, 2026. (Remittitur; *see also* Court of Appeal, First Appellate District, Case No. A171728, docket for November 26, 2025.) Even if the Remittitur were to be treated as the judgment whence Cross-Defendant seeks relief, a motion filed pursuant to the statute even as early as the date on which the Opposition was filed would have been untimely *a fortiori*. Thus, not only is there no motion pursuant to the statute before the Court, but it would also be fruitless for Cross-Defendant to bring one.

Enforcement

In general, when a judgment is reversed and remanded with directions, " 'those directions are binding on the trial court and *must* be followed.' " (*Ayyad v. Sprint Spectrum, L.P.* (2012) 210 Cal.App.4th 851, 860, 148 Cal.Rptr.3d 709; accord, *Butler v. Superior Court of Los Angeles County* (2002) 104 Cal.App.4th 979, 982, 128 Cal.Rptr.2d 403.) The order of the appellate court, as stated in the remittitur, defines the scope of the trial court's jurisdiction to act, and action which does not conform to the reviewing court's directions is unauthorized and void. (*Griset v. Fair Political Practices Com.* (2001) 25 Cal.4th 688, 701, 107 Cal.Rptr.2d 149, 23 P.3d 43; *Ayyad, supra*, at p. 860, 148 Cal.Rptr.3d 709.)

In re J.M. (2024) 103 Cal.App.5th 745, 755 [323 Cal.Rptr.3d 430, 438], *review dismissed, cause remanded* (Cal. 2025) 331 Cal.Rptr.3d 902 [567 P.3d 72]

Initially, the Court notes that plaintiff's position again is that defendant's stay is still in effect because defendant has not requested the court terminate the stay (Stone Decl. ¶23.) Again, that is inaccurate because the terms of the stay of supersedeas reflect that the stay will dissolve upon issuance of the remittitur in the appeal pursuant to California Rules of Court, rule 8.272. (Notice of Appellate Stay of Proceedings filed July 24, 2025.) Remittitur was filed in this Court on December 5, 2025; thus the proceedings have not been stayed since then.

The parties main dispute is over whose responsibility it is to initiate arbitration. This petty squabble is academic. This case cannot proceed unless arbitration is at least initiated/attempted. So Plaintiff has two choices: initiate arbitration or dismiss his claims in this action.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling

pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-00660 ANDREW G WATTERS VS. SIDDHARTH BREJA, ET AL.

LINE 4

ANDREW G WATTERS
SIDDHARTH BREJA

JERAMY STEPHEN STONE
PRO SE

DEFENDANT SIDDHARTH BREJA'S MOTION TO ENFORCE APPELLATE MANDATE; AND DISMISS PLAINTIFF'S COMPLAINT FOR FAILURE TO PROSECUTE (IN THE ALTERNATIVE)

TENTATIVE RULING:

Please refer to the tentative ruling for Line 3, which is hereby incorporated by reference and serves as the tentative ruling for Line 4.
